



Rating (Interim Relief) Act 1964

1964 CHAPTER 18

An Act to make provision with respect to England and Wales for grants to rating authorities by reference to the proportion of elderly persons in the population of their areas and for the mitigation of hardship to residential occupiers attributable to the increase in the level of rates; and for connected purposes. [25th March 1964]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Relief for rating authorities

1.—(1) If in the year 1964-65 or any subsequent year, not being later than the year 1967-68, the number of persons over the age of sixty-five estimated to be included in the population of any rating authority's area exceeds one-tenth of the estimated total of that population, the Minister shall pay to that authority a grant in respect of that year at a rate of five pounds per head of the excess. Grants by reference to proportion of elderly persons in population.

(2) Any grant payable to any authority under this section shall be paid at such times as the Minister may with the consent of the Treasury determine, and shall be payable in aid of the revenues of the authority generally.

Relief for residential occupiers

2.—(1) Subject to subsection (4) of this section, where in the case of any dwelling— Relief for residential occupiers of dwellings.

(a) the rates attributable to that dwelling for the year 1964-65 exceed the rates so attributable for the year

1962-63 increased by one-quarter or five pounds, whichever is the greater ; and

- (b) the rating authority are satisfied with respect to any rate period beginning after 31st March 1964 and ending not later than 31st March 1968 that the residential occupier of that dwelling will suffer hardship attributable to the increase since 31st March 1963 in the level of rates,

the rating authority shall have power to grant the residential occupier of that dwelling relief in accordance with the provisions of this section.

(2) Any relief granted under this section to the residential occupier of a dwelling shall be afforded in the following manner, that is to say—

(a) if—

(i) the residential occupier is rated as the occupier or owner of the hereditament which consists of or includes the dwelling ; and

(ii) where he is rated as the occupier, no agreement is for the time being in force under section 11(2) of the Rating and Valuation Act 1925 for the payment or collection of the rates on that hereditament by some other person as the owner of the hereditament,

either by the remission, or by the refund, of part of any rate or instalment of a rate demanded ;

- (b) in any other case, by the making by the rating authority to the residential occupier of such periodical payments as that authority may think fit.

(3) The following provisions shall have effect with respect to any relief granted under this section in respect of any dwelling, that is to say—

(a) the relief shall not be granted in respect of more than one rate period at a time ;

(b) the annual rate of the relief in respect of, or of part of, any rate period shall exceed neither of the following amounts, that is to say—

(i) the amount of the excess referred to in subsection (1)(a) of this section ;

(ii) the amount, if any, by which the rates attributable to the dwelling for the year in which that period falls exceed the rates so attributable for the year 1962-63 increased as mentioned in the said subsection (1)(a) ;

(c) if the person granted relief is the residential occupier for part only of the rate period in respect of which the

relief is granted, the amount of relief afforded shall not exceed an amount bearing the same proportion to the annual rate of the relief as that part of that rate period bears to a year.

(4) This section shall not apply to any dwelling which constitutes or forms part of a hereditament to which section 11(4) or 12(4) of the Rating and Valuation Act 1961 for the time being applies.

3.—(1) Subject to subsections (2), (6) and (7) of this section, the rates attributable to any dwelling for the year 1962-63 for the purposes of section 2(1)(a) of this Act shall be calculated by multiplying the rateable value of the dwelling on 31st March 1963 by the rate (expressed as a fraction of a pound) made for that year for the parish in which the dwelling was situated on that date. Calculation of rates attributable to dwelling.

(2) If in the case of the parish in question separate rates were made for separate rate periods in the year 1962-63, the reference in subsection (1) of this section to the rate made for that year for that parish shall be construed as a reference to the aggregate of those separate rates.

(3) Subject to subsections (5) and (6) of this section, the rates attributable to any dwelling for the year 1964-65 for the purposes of section 2(1)(a) of this Act shall be calculated by multiplying the rateable value of the dwelling on 1st April 1964, or the first day thereafter on which the hereditament for the time being consisting of or including that dwelling appears in any valuation list, by the rate (expressed as a fraction of a pound) made for the rate period beginning with 1st April 1964 for the parish in which the dwelling or the site thereof was situated on that date.

(4) Subject to subsections (5) and (6) of this section, the rates attributable to a dwelling for the purposes of section 2(3)(b)(ii) of this Act for the year in which any rate period or part of a rate period falls shall be calculated by multiplying the rateable value of the dwelling on the first day in that period on which the rate for that period became leviable on that dwelling by the rate (expressed as a fraction of a pound) made for that rate period for the parish in which the dwelling was situated on that day.

(5) Any reference in subsection (3) or (4) of this section to the rate made for any period shall, if that period is a period of less than a year, be construed as a reference to an amount bearing the same proportion to the amount of that rate as a year bears to that period.

(6) For the purposes of any calculation under subsection (1), (3) or (4) of this section, references in this section to the rateable value of a dwelling on a particular date shall be construed as references to that value after any alteration to the valuation list which, at the time when the calculation is made, is deemed to have had effect on that date; and the rateable value of a dwelling which on the date in question formed part only of a hereditament shall be taken to be an amount equal to such part of the rateable value of the hereditament on that date as appears to the rating authority to be appropriate having regard to all the circumstances and, in particular, in the case of a dwelling which was on that date the subject of a tenancy to which the Rent Acts apply or a statutory tenancy, to any relevant agreement or determination such as is mentioned in the definition of "rates" contained in section 25(1) of the Rent Act 1957.

(7) If, in the case of any dwelling, the hereditament for the time being consisting of or including that dwelling did not appear in any valuation list on 31st March 1963, then, for the purposes of any calculation with respect to that dwelling under subsection (1) of this section, the valuation officer shall, if but only if the rating authority request him so to do, notify that authority as to what in the opinion of that officer the rateable value of that hereditament would have been on 31st March 1963 if it had fallen to be valued on that date in accordance with the provisions then in force with respect to valuation for rating, but with the substitution in section 2(3) of the Valuation for Rating Act 1953 for references to the time of valuation of references to the time of the request; and—

- (a) the value so notified shall be deemed to be the rateable value of that hereditament on 31st March 1963; and
- (b) the said subsection (1) shall have effect as if after the word "dwelling" in the last place where it occurs in that subsection there were inserted the words "or the site thereof".

Variation or
termination
of relief, etc.

4.—(1) The rating authority by whom any relief is granted under section 2 of this Act may at any time, if it appears to them just so to do by reason of a material change of circumstances, vary or terminate that relief.

(2) Where, in the case of a hereditament consisting of or including a dwelling in respect of which such relief has been granted which falls to be afforded in the manner provided by section 2(2)(a) of this Act, an alteration is made in the valuation list with respect to that hereditament, being an alteration which is deemed to have had effect on 1st April 1964 or the first day thereafter on which that hereditament appeared in that list, the rating authority by whom the relief was granted shall review that

grant ; and, for the purposes of determining the amount, if any, which is to be repayable or allowable or, as the case may be, payable and recoverable under section 42(3) of the Local Government Act 1948, there shall be taken into account—

- (a) any amount by which any such relief afforded exceeded the maximum relief which could have been afforded if the alteration had been made before the relief was granted ; and
- (b) if the rating authority decide to vary or rescind the grant, any further amount over-paid by way of relief under section 2 of this Act.

5.—(1) In respect of any year for which any rating authority Grants affords relief under section 2 of this Act, the Minister shall pay towards that authority a grant equal to half the aggregate amount of that relief plus one-sixth of the amount, if any, by which that aggregate amount exceeds three per cent. of the gross rate income of the authority's area for that year. relief under s. 2.

(2) Any grant payable to any authority under this section shall be paid at such times as the Minister may with the consent of the Treasury determine.

6.—(1) Any relief afforded under section 2 and any grant paid under section 5 of this Act shall be disregarded in calculating the product of a rate of one penny in the pound for any area for the purposes of section 5 of the Local Government Act 1958 (which relates to rate-deficiency grants) ; and any grant paid under section 5 of this Act shall also be disregarded in calculating for the purposes of that section the gross rate income of any area. Treatment of, and of grants towards, relief under s. 2 for other purposes.

(2) Subject to the foregoing subsection—

- (a) the amount of relief afforded as aforesaid in any year shall be treated as loss on collection for the authority's area for that year ;
- (b) the amount of any such grant as aforesaid paid in any year shall be included in the gross rate income of the authority's area for that year as if received under section 100 of the Local Government Act 1948.

(3) Where in any year section 1(7) of the Rating and Valuation (Miscellaneous Provisions) Act 1955 for the time being applies to any hereditament and relief under section 2 of this Act in respect of a dwelling constituting or forming part of that hereditament falls to be afforded in the manner provided by section 2(2)(a) of this Act, the amount recoverable in respect of rates levied on that hereditament for that year shall not be reduced by virtue of the said section 1(7) by an amount greater

than the amount, if any, by which the reduction which would have fallen to be made under the said section 1(7) if that relief had not been granted exceeds the annual rate of that relief.

General

Regulations.

7. The Minister may by regulations made by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament, make provision with respect to—

- (a) the manner in which and the date at which the population of, and the number of persons over the age of sixty-five in, any area are to be estimated for the purposes of section 1 of this Act;
- (b) the calculation and correction of estimates of any grants payable under section 1 or 5 of this Act;
- (c) the adjustment of payments of such grants by reference to later estimates and calculations;
- (d) the recovery by the Minister of any such grants overpaid to any authority, whether by way of deduction from grants payable to that authority or otherwise.

Interpretation.

8.—(1) In this Act, except where the context otherwise requires, the following expressions have the following meanings respectively, that is to say—

“dwelling” means—

(a) a hereditament which is a dwelling-house within the meaning of the Valuation for Rating Act 1953; or

(b) a hereditament in the case of which, on 31st March 1963, its gross value for rating purposes fell or would have fallen to be ascertained in accordance with section 4, or that section as modified by section 5, of the said Act of 1953, except so much of that hereditament as consists of premises not used wholly for the purposes of a private dwelling or private dwellings; or

(c) any part of any such hereditament as is mentioned in paragraph (a) or (b) of this definition which is used wholly for the purposes of a private dwelling for himself and any other members of his household by a person for the time being entitled so to use that part only of the hereditament;

“gross rate income” and “loss on collection” have the meanings respectively assigned by the Rate-product Rules 1959 or the Rate-product (County Boroughs) Rules 1959, as the case may require;

“the Minister” means the Minister of Housing and Local Government ;

“parish” has the meaning assigned by section 68 of the Rating and Valuation Act 1925 ; and for the purposes of this definition, as respects any period before 1st April 1965, paragraph 13 of Schedule 15 to the London Government Act 1963 shall be deemed to have come into force with the substitution for any reference therein to Greater London of a reference to the administrative county of London ;

“rate”, “hereditament” and “owner” have (as respects any period before 1st April 1965 in relation to the administrative county of London as well as the remainder of England and Wales) the meanings respectively assigned by section 68 of the Rating and Valuation Act 1925 ;

“rate period” means a period, being a year or part of a year, for which a rate is made ;

“rating authority” means—

(a) the council of any county borough or county district, the Common Council of the City of London and the Council of the Isles of Scilly ; and

(b) as respects the year 1964-65, the council of any metropolitan borough ; and

(c) as respects the year 1965-66 and subsequent years, the council of any London borough ;

“residential occupier” in relation to a dwelling means the person by whom that dwelling is used as a private dwelling for himself and any other members of his household ;

“year” means a period of twelve months beginning with 1st April in any calendar year.

(2) References in this Act to any enactment or instrument shall be construed as references to that enactment or instrument as amended, extended or applied by or under any other enactment or instrument.

9. There shall be defrayed out of moneys provided by Expenses. Parliament—

(a) any expenses of the Minister of Housing and Local Government incurred in paying grants under section 1 or 5 of this Act ;

(b) any increase attributable to this Act in the sums payable out of moneys so provided under any other Act.

Short title
and extent.

10.—(1) This Act may be cited as the Rating (Interim Relief) Act 1964.
(2) This Act does not extend to Scotland or to Northern Ireland.

Table of Statutes referred to in this Act

Short Title	Chapter
Rating and Valuation Act 1925	15 & 16 Geo. 5. c. 90.
Local Government Act 1948	11 & 12 Geo. 6. c. 26.
Valuation for Rating Act 1953	1 & 2 Eliz. 2. c. 42.
Rating and Valuation (Miscellaneous Provisions) Act 1955	4 & 5 Eliz. 2. c. 9.
Rent Act 1957	5 & 6 Eliz. 2. c. 25.
Local Government Act 1958	6 & 7 Eliz. 2. c. 55.
Rating and Valuation Act 1961	9 & 10 Eliz. 2. c. 45.
London Government Act 1963	1963, c. 33.